

- (c) Himachal Pradesh (d) Jammu and Kashmir
(e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (a)

Special category status is being provided to Sikkim, Himachal Pradesh, Jammu and Kashmir on the list, but Bihar has not been given special category status by the Central Government. Till now total 11 states were granted the special category status by central government.

Election Commission

***Articles 324 to 329** in part XV of the Constitution deals with the provisions related to the electoral system. *According to Article 324 there shall be an election commission which is a **permanent and independent body**. *This commission is responsible for superintendence, direction and control of conducting the elections to the Parliament, State Assemblies, the President and the Vice-President. *The election commission consists of a Chief Election Commissioner and other election commissioners (the number being decided by the President time to time) [Art. 324(2)]. The Chief Election Commissioner and other election commissioners are **appointed by the president**. *Till 15 October, 1989 there was only one election commissioner, but on 16 October, 1989 two more additional election commissioners were appointed for the first time. *But these posts were in effect upto the 1st of January 1990. *On 1st October 1993, again two additional election commissioners were appointed and since then the election commission has three members. At present there are three Election Commissioners in the Election Commission. They have equal power and their salary and perks are the same as that of the Judges of the supreme court. *Their tenure is of **6 year or up to the age of 65 years** (whichever is earlier). ***The chief election commissioner can be removed** from his office only in a manner and on the grounds prescribed for removal of Judges of the supreme court [Article 324(5)]. *Other Election Commissioner or the state election commissioner can be removed by the President on the recommendation of the Chief Election Commissioner. *The notification for the election to the Lok Sabha and Rajya Sabha is issued by the President and for the state legislative assemblies by the Governor. ***Article 326** mentions the provision of **Adult**

Suffrage. The right to vote in India is statutory Right.

*As per the People Representation Act 1951, there is right to vote and being elected in India. *The age for the right to vote was decreased from 21 years to 18 years by the **61st Constitutional Amendment Act 1988** which came into effect from 28 March 1989. *The election to local bodies (Panchayats and municipalities) is being conducted by the State Election Commission. *The **Delimitation commission** is a commission established by the Government of India. Its main task is to redraw the boundaries of various assemblies and lok sabha constituencies based on the recent census. Till now, the Delimitation commission has been set up for **five times (1952, 1963, 1973 and 2002) and the latest in march 2020**.

1. **The Constitution of India provides for an Election Commission under Article –**

- (a) 321 (b) 322
(c) 323 (d) 324

M.P.P.C.S. (Pre) 2014

U.P.P.C.S. (Mains) 2010

U.P.P.C.S. (Pre) 2016

U.P. P.C.S. (Mains) 2017

Ans. (d)

The Constitution of India provides for an Election Commission under Article 324 for the superintendence, direction and control of the preparation of the electoral rolls for and the conduct of, all elections to Parliament, State Legislative Assemblies, President and Vice- President.

2. **Which Article in the Indian Constitution is related with the establishment of the Election Commission of India?**

- (a) Article 324 (b) Article 148
(c) Article 342 (d) Article 325
(e) None of the above / More than one of the above

66th B.P.C.S. (Pre) 2020

Ans. (a)

See the explanation of the above question.

3. **The Chief Election Commissioner of India is appointed by –**

- (a) Lok Sabha (b) Prime Minister
(c) President (d) Chief Justice

Uttarakhand P.C.S. (Pre) 2010

Uttarakhand U.D.A./L.D.A. (Pre) 2007

Ans. (c)

According to Article 324(2), the Chief Election Commissioner and other Election Commissioners of India are appointed by the President under the law made by the Parliament.

4. Which one of the following statements is not correct?

- (a) In case of differences of opinion amongst the Chief Election Commissioner and other Election Commissioners, the matter is decided by the Law Commission.
- (b) The Election Commissioners cannot be removed from their office except on the recommendation of the Chief Election Commissioner.
- (c) The Chief Election Commissioner and other Election Commissioners enjoy equal powers.
- (d) The term of office of Election Commissioners is six years from the date they assume office or till the day they attain the age of 65 years, whichever is earlier.

M.P.C.S. (Pre) 2024

Ans. (a)

At present, there are one Chief Election Commissioner and two other Election Commissioners in the Election Commission of India. All of them have equal powers, and their salary, wages and other benefits are also equal, which are equivalent to the Judges of the Supreme Court of India. The tenure of Election Commissioners is 6 years or 65 years of age, whichever is earlier, from the date of their appointment. According to the provisos of the clause (5) of the Article 324, the Chief Election Commissioner shall not be removed from his office except in like manner and on the like grounds as a Judge of the Supreme Court and any other Election Commissioner or a Regional Commissioner shall not be removed from his office except on the recommendation of the Chief Election Commissioner. In the 3-member election commission, although the Chief Election Commissioner acts as the Head, nevertheless due to the powers of all election commissioners being equal, all the issues are decided by the decision of the majority. Hence, statement of option (a) is not correct.

5. Identify the correct statement regarding the Election Commission of India.

- (a) Election Commission of India is a permanent Constitutional Body and it was established in accordance with the Constitution on 25th January 1952.
- (b) The concept of multi-member Commission has been in operation since 1995 with decision making power by majority vote.
- (c) Under the Constitution, the Commission also has advisory jurisdiction in the matter of post election disqualification of sitting members of Parliament and State Legislatures.

- (d) The President appoints Chief Election Commissioner and Election Commissioners and they have tenure of five years, or up to the age of 60 years, whichever is earlier.

(e) Question not attempted

Raj. P.C.S. (Pre) 2024

Ans. (c)

The Election Commission of India is a permanent Constitutional Body and it was established in accordance with the Constitution on 25th January, 1950. Therefore option (a) has an incorrect statement. Statement (b) is also incorrect as, two additional Election Commissioner were appointed on 1st October, 1993. The Statement (d) is also incorrect as, the President appoints Chief Election Commissioner and Election Commissioners, but they have tenure of Six years, or up to the age of 65 years, whichever is earlier.

Under Article 103 (for members of Parliament) and Article 192 (for members of State Legislatures) the Election Commission of India has advisory jurisdiction in the matter of post-election disqualification of sitting members. Therefore, option (c) is the correct answer.

6. Consider the following statements with reference to India:

- 1. The Chief Election Commissioner and other Election Commissioners enjoy equal powers but receive unequal salaries.
- 2. The Chief Election Commissioner is entitled to the same salary as is provided to a Judge of the Supreme Court.
- 3. The Chief Election Commissioner shall not be removed from his office except in like manner and on like grounds as a Judge of the Supreme Court.
- 4. The term of office of the Election Commissioner is five years from the date he assumes his office or till the day he attains the age of 62 years, whichever is earlier.

Which of these statements are correct?

- (a) 1 and 2
- (b) 2 and 3
- (c) 1 and 4
- (d) 2 and 4

I.A.S. (Pre) 2002

Ans. (b)

The powers, salaries and allowances of the Chief Election Commissioner and other Election Commissioners are equal; they are entitled to the same salary as is provided to a Judge of the Supreme Court. The term of the Chief Election Commissioner is 6 years or upto the age of 65 years (whichever is earlier) and they may be removed in the same manner as provided for the Judges of the Supreme Court. Thus, statements 2 and 3 are correct.

7. Consider the following statements:

- (i) The Chief Election Commissioner of the Election Commission of India is paid a salary equal to the salary of the Judge of the Supreme Court.
- (ii) The term of Chief Election Commissioner of India shall be for a period of 6 years from the date of assuming office or till the age of 65 years whichever comes first.
- (iii) An Election Commissioner may at any time by writing under his hand addressed to the Chief Election Commissioner, resign his office.

Which statements are correct?

- (a) (i) and (iii)
- (b) (i) and (ii)
- (c) (i), (ii) and (iii)
- (d) (iii) only

M.P.P.C.S. (Pre), 2021

Ans. (b)

The Chief Election Commissioner of the Election Commission of India is paid a salary equal to the salary of the Judge of the Supreme Court. The term of Chief Election Commissioner of India shall be for a period of 6 years from the date of assuming office or till age of 65 years whichever comes first. Chief Election Commissioner or Election Commissioner may at any time by writing under his hand addressed to the President, resign from his office.

8. Consider the following statements:

- (i) The Chief Election Commissioner of the Election Commission of India is paid the salary equal to the salary of the Judge of the Supreme Court.
- (ii) The term of Chief Election Commissioner of the Election Commission of India shall be for a period of 6 years from the date of assuming office or till the age of 65 years, whichever comes first.
- (iii) An Election Commissioner may, at anytime, by writing under his hand addressed to the Chief Election Commissioner, resign his office.

Choose the correct statement.

- (a) (i) and (ii)
- (b) (ii) and (iii)
- (c) (i) and (iii)
- (d) (iii) only

M.P.P.C.S. (Pre) 2020

Ans. (a)

See the explanation of the above question.

9. What is the tenure of the Chief Election Commissioner of India?

- (a) Five Years
- (b) During the pleasure of the President

- (c) Six years or till the age of 65 years whichever is earlier
- (d) Five years or till the age of 65 years whichever is earlier

U.P.P.C.S.(Pre) 2012
Uttarakhand P.C.S. (Pre) 2012

Ans. (c)

See the explanation of the above question.

10. The status of the Chief Election Commissioner of India is equal to the –

- (a) Chief Justice of India
- (b) Governor of a State
- (c) Speaker of Lok Sabha
- (d) Speaker of Legislative Assembly of a State

U.P.P.C.S. (Mains) 2016

Ans. (*)

According to mha.nic.in/Hindi/top Table of precedence, the Chief Justice of India and Speaker of Lok Sabha is ranked 6th, the Governor of a State is ranked 4th, Speaker of the Legislative Assembly of State is ranked 14th. The status of Chief Election Commissioner of India is ranked at 9(A) with Chairperson of Union Public Service Commission and Auditor General of India which are not given in the options. Thus, none of the given answers is correct.

11. Given below are two statements:

Assertion (A) : Powers for conducting elections to the Parliament and State Legislatures in a free and fair manner have been given to an independent body i.e. the Election Commission.

Reason (R) : Power of removal of Election Commissioners is with the executive.

In the context of above, which one of the following is correct?

Code :

- (a) Both (A) and (R) are true, and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are true, but (R) is not a correct explanation of (A).
- (c) (A) is true but, (R) is false.
- (d) (A) is false but, (R) is true.

U.P.P.C.S. (Pre) 2006

Ans. (b)

Article 324 of the Constitution provides superintendence, direction, and control of the Parliament and State Legislature elections to be vested in an Election Commission. Thus assertion (A) is correct. The Chief Election Commissioner can be removed from his post in like manner and on the like grounds as provided for removal of Judges from the Supreme Court. The other members can be removed by the President in consultation with the Chief Election Commissioner. Thus, reason (R) is also correct, but reason (R) is not the correct explanation of (A).

12. The Chief Election Commissioner can be removed from office by –

- (a) Both Houses of Parliament by two-thirds majority in each House.
- (b) The same procedure which applies in case of removal of Supreme Court Judges.
- (c) The President of India in consultation with the Chief Justice of India.
- (d) The President on the advice of the Council of Ministers.

U.P.P.C.S. (Mains) 2002

U.P.P.C.S. (Pre) 1991

Ans. (b)

See the explanation of the above question.

13. The Election Commissioner can be removed by the

- (a) Chief Election Commissioner
- (b) Prime Minister
- (c) President on the recommendation of the Chief Election Commissioner
- (d) Chief Justice of India

U.P.P.C.S. (Pre) 2014

Ans. (c)

The Election Commissioner shall not be removed except on the recommendation of the Chief Election Commissioner to the President.

14. The functions of Election Commission of India are-

- (I) To conduct all the elections of the Parliament and State Legislative Assembly.
- (II) To conduct elections for the post of President and Vice-President.
- (III) To recommend for President's Rule in case of any State not in condition to hold or conduct free and fair elections in any State.
- (IV) To Supervise, direct and control the work of preparing electoral lists.

Code :

- (a) I, II, III
- (b) I, II and IV
- (c) I, III, IV
- (d) all of them

U.P.U.D.A./L.D.A. (Pre) 2001

Ans. (b)

According to Article 324 (1), the superintendence, direction and control of the preparation of the electoral rolls for, and the conduct of, all elections to Parliament and the Legislature of every State and elections to the offices of President and Vice-President held under this Constitution shall be vested in an Election Commission.

Note- The Election Commission does not recommend the President's Rule in case any State is not in a condition to conduct free and fair elections in any State.

15. Which one of the following functions is not related to the Election Commission?

- (a) Direction and control of the preparation of the electoral rolls.
- (b) Conduct of all elections to the Parliament and Legislatures of every State.
- (c) To conducts the election of the Offices of President and Vice-president.
- (d) To make provision with respect to elections to Legislatures.

U.P.P.C.S. (Mains) 2009

Ans. (d)

See the explanation of the above question.

16. Which of the following elections is not conducted by the Election Commission?

- (a) Lok Sabha
- (b) Rajya Sabha
- (c) President's election
- (d) Local bodies

Uttarakhand U.D.A./L.D.A. (Mains) 2006

Uttarakhand U.D.A./L.D.A. (Mains) 2007

Ans. (d)

Article 324 of the Constitution provides superintendence, direction and control of the Parliament and State Legislature elections to be vested in an Election Commission. Under Articles 243 K and 243 ZA, the elections of Panchayats and municipalities are conducted by State Election Commission.

17. Which of the following are the functions of the Election Commissioner of India?

1. Conduct of elections for the posts of the Speaker and the Deputy Speaker of the Lok Sabha and Deputy Chairman of the Rajya Sabha.
2. Conduct of elections of the Municipal Corporations and Municipalities.
3. Deciding on all doubts and disputes arising out of the above elections.

Select the correct answer from the codes given below :

- (a) 2 and 3 (b) 1 and 2
(c) 1 and 3 (d) None of the above

U.P.P.C.S. (Pre) 2024

Ans. (d)

Under Article 324, The Superintendence, direction and Control of preparation of electoral rolls and of the conduct of all elections to the Parliament and to the legislature of every State and of elections to the offices of President and Vice-President, is done by the Election Commission of India. The Vice-President is the ex-officio chairman of the Rajya Sabha. The elections of Speaker and deputy Speaker of Lok Sabha and the deputy Chairman, of Rajya Sabha are performed by the members of the respective Houses from amongst the members.

The elections for Municipalities and Municipal Corporations are done under Article 243ZA by the state Election Commission (as mentioned under Article 243K) of the respective states. All disputes and doubts arising out of the elections are disbursed by the Judiciary.

18. Which of the following are the functions of the Election Commission of India?

- (1) To conduct elections for the post of Speaker and Deputy-speaker of Lok Sabha and the Chairperson of Rajya Sabha.
- (2) To conduct elections for the municipality and municipal corporations.
- (3) To make a decision on all the doubts and disputes arising from the election.

Select the correct answer from the code given below:-

- (a) 1 and 2 (b) 1 and 3
(c) 2 and 3 (d) None of the above

I.A.S. (Pre) 1994

Ans. (d)

See the explanation of the above question.

19. Consider the following statements:

1. The Election Commission of India is a five-member body.
2. Union Ministry of Home Affairs decides the election schedule for the conduct of both general elections and bye-elections.

3. Election Commission resolves the disputes relating to splits/mergers of recognised political parties.

Which of the statements given above is/are correct?

- (a) 1 and 2 only (b) 2 only
(c) 2 and 3 only (d) 3 only

I.A.S. (Pre) 2017

Ans. (d)

Articles 324 to 329 under Part XV of the Indian Constitution deal with elections. Article 324 of the Constitution provides that the power of superintendence, direction and control of elections to Parliament, state Legislature, the office of President of India and the office of Vice-President of India shall be vested in the Election Commission. The Election Commission of India is a three-member body comprising of a Chief Election Commissioner and two election commissioners. Election Commission of India decides the schedule for the conduct of general elections and bye-elections. Besides this, The Election commission also resolves the disputes relating to splits/mergers of recognised political parties.

20. Which of the following is not related to Election Commission?

- (a) To issue notification of election
(b) To distribute election symbols
(c) To settle the validity of elections.
(d) To conduct elections peacefully.

U.P.P.C.S. (Pre) 1992

Ans. (a)

Issuance of notification for election is not a function of the Election Commission. Notification for the election of Lok Sabha and Rajya Sabha is issued by the President, and for the election of Legislative Assemblies and Legislative Councils, the notification is issued by the Governor of the concerned state.

21. Which one of the following is correct in respect of the commencement of the election process in India?

- (a) The recommendation for election is made by the Government, and the notification for election is issued by the Election Commission.
- (b) The recommendation for election is made by the Election Commission, and the notification for election is issued by the Home Ministry at the Centre and Home Departments in the States.
- (c) The recommendation for election is made by the Election Commission, and the notification for election is issued by the President and Governors of the States concerned.

- (d) Both the exercises of making a recommendation for election and that of issuing a notification in respect of it are done by the Election Commission.

I.A.S. (Pre) 1995

Ans. (c)

The President or the Governor of the State concerned issues the notification for election on the recommendation of the Election Commission. After that, the date of the election, time, etc. are issued by the Election Commission.

22. Which of the election system have been adopted for different elections in India?

- (1) Direct Election System on the basis of Adult Suffrage.
 - (2) System of Proportional representation by a Single Transferable Vote.
 - (3) List System of Proportional Representation.
 - (4) The cumulative Voting system of Indirect Election.
- Choose the correct answer from the given code-**

- (a) 1 and 2
- (b) 1 and 3
- (c) 1,2 and 3
- (d) 2,3 and 4

I.A.S. (Pre) 1994

Ans. (a)

Direct and Indirect systems of elections have been adopted in India. The elections of President, Vice-President, Rajya Sabha and Legislative Council are conducted by the system of proportional representation by a single transferable vote through the indirect system and the elections of Lok Sabha and State Legislative Assemblies are conducted on the basis of adult suffrage through the direct system.

23. Who decides disputes regarding disqualification of Members of Parliament?

- (a) The President
- (b) The Concerned House
- (c) The Election Commission
- (d) The President in consultation with the Election Commission

U.P.P.C.S. (Mains) 2009

Ans. (d)

According to Article 103 of the Indian Constitution, the dispute regarding the disqualification of a member of Parliament shall be referred to the decision of the President, and his decision shall be final. Before giving any decision on any such question, the President shall obtain the opinion of the Election Commission and shall act accordingly to such opinion. Thus option (d) is the correct answer.

24. While deciding any question relating the disqualification of a Member of Parliament, the President shall obtain the opinion of

- (a) Chief Justice of India
- (b) Election Commission of India
- (c) Attorney General of India
- (d) Speaker of the Lok Sabha

U.P.P.C.S. (Pre) 2015

Ans. (b)

See the explanation of the above question.

25. Under Article 103 of the Constitution of India, the President shall obtain the opinion of which of the following authority before giving any decision on any question regarding the disqualification of the members of the Lok Sabha?

- (a) Speaker of the Lok Sabha
- (b) Election Commission
- (c) Supreme Court
- (d) Attorney General

R.A.S./R.T.S. (Pre) 2021

Ans. (b)

As per Article 103, If any question arises as to whether a member of either House of Parliament has become subject to any of the disqualifications mentioned in clause (1) of Article 102, the question shall be referred to the decision of the President, and his decision shall be final. Before giving any decision on any such question, the President shall obtain the opinion of the Election Commission and shall act according to such opinion. Hence option (b) is correct.

26. If in an election to a State Legislative Assembly the candidate who is declared elected loses his deposit, it means that –

- (a) The polling was very poor.
- (b) The election was for a multi-member constituency.
- (c) The elected candidate's victory over his nearest rival was very marginal.
- (d) A very large number of candidates contested.

I.A.S. (Pre) 1995

Ans. (d)

Each candidate has to deposit security, and a defeated candidate who fails to secure more than one-sixth of the valid votes polled in the constituency will lose his security deposit. It may be possible if a large number of candidates contest the election and the votes get distributed.

27. The decision to disqualify the person declared convict by the Court to contest the elections has been made by-

- (a) The Government of India
- (b) The Supreme Court

- (c) The Election Commission
- (d) The Parliament

I.A.S. (Pre) 2009

Ans. (d)

The decision to disqualify a person, declared convict by the Court to contest the election, was given by the Parliament. According to Section 8(3) of the Representation of People Act, 1951 made by the Parliament a person convicted of any offence and sentenced to imprisonment for not less than 2 years shall be disqualified from the date of such conviction and shall continue to be disqualified for a further period of 6 years after his release.

28. Given below are two statements:

Assertion (A) : Model code of conduct is to be followed by political parties as soon as an election is announced.

Reason (R) : Model code of conduct was enacted by Parliament.

Choose the correct answer from the code given below:

Code :

- (a) Both (A) and (R) are true and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are true and (R) is not the correct explanation of (A).
- (c) (A) is true but (R) is false.
- (d) (A) is false but (R) is true.

U.P.P.C.S. (Pre) 2017

Ans. (c)

The Model code of conduct is a set of guidelines for the guidance of political parties and candidates during elections, mainly with respect to speeches, polling booths, processions, manifestos and general conduct. The model code of conduct has been formulated by the Election Commission of India. The Model Code of conduct comes into force immediately on the announcement of the election schedule by the Election commission for ensuring free and fair elections.

29. Right to Vote and to be Elected in India is a-

- (a) Fundamental Right
- (b) Constitutional Right
- (c) Natural Right
- (d) Legal Right

I.A.S. (Pre) 2017

U.P.U.D.A./L.D.A. (Pre) 2013

Ans. (d)

Right to Vote and to be elected is a legal right.

30. Right to Vote and Right to be elected in India is a –

- (a) Constitutional Right
- (b) Fundamental Right
- (c) Legal Right under an Act
- (d) None of the above

U.P.P.C.S. (Mains) 2010

Ans. (c)

The right to vote and the right to be elected is a legal right in India. The Supreme Court pointed out the difference between a legal right and a fundamental right in a number of cases. Some significant differences are: (a) A legal right is the offshoot of the ordinary law framed by the Legislature, whereas fundamental rights are of a transcendental character. These are protected against any violation of any authority. (b) A fundamental Right cannot be waived, whereas there are instances where a legal right has been violated. (c) An ordinary legal right can be taken away by the State, whereas the fundamental rights are placed beyond the reach of the State except as provided by the Constitution.

31. The Right to Vote in India is a

- (a) Fundamental Right
- (b) Constitutional Right
- (c) Natural Right
- (d) Legal Right

U.P.P.C.S. (Pre) (Re. Exam) 2015

Ans. (d)

The right to vote in India is a legal right. In 2009, in the case of **Kuldip Nayar Vs. Union of India**, the Supreme Court, held that the Right to Vote is neither a Constitutional right nor a fundamental right. It is merely a statutory/legal right.

32. Voting right by the youths at the age of 18 years was exercised for the first time in the General Election of

- (a) 1987
- (b) 1988
- (c) 1989
- (d) 1990

U.P.P.C.S (Pre) 2011

Ans. (c)

61st Constitutional Amendment Act, 1988, reduced the age for the Right to Vote from 21 years to 18 years, which came into force on March 28, 1989. The right to vote was primarily used by the youths in November, 1989 in the General Elections of Lok Sabha.

33. The Lower age limit of voters of Union and State Legislature was reduced from 21 years to 18 years by

- (a) 57th Amendment, 1987
- (b) 60th Amendment, 1988
- (c) 61st Amendment, 1989
- (d) 65th Amendment, 1990

Chhattisgarh P.C.S. (Pre) 2011

48th to 52nd B.P.S.C. (Pre) 2008

U.P.P.C.S. (Spl) (Mains) 2004

41st B.P.S.C. (Pre) 1996

Ans. (c)

See the explanation of the above question.

34. Which Constitutional Amendment reduced the voting age from 21 years to 18 years?

- (a) Sixty-third Amendment
- (b) Sixty-second Amendment
- (c) Sixty-first Amendment
- (d) Sixtieth Amendment

U.P.P.C.S. (Mains) 2010

Uttarakhand P.C.S. (Mains) 2006

U.P.P.C.S. (Mains) 2007

Ans. (c)

See the explanation of the above question.

35. Which of the following is concerned with the 61st Amendment of the Indian Constitution?

- (a) Emergency powers of the President
- (b) Powers of the President to extend President's Rule
- (c) Lowering the age of voters
- (d) Financial Emergency

U.P.P.C.S. (Spl) (Mains) 2008

Ans. (c)

See the explanation of the above question.

36. In which article of the constitution the Adult Suffrage is recognised?

- (a) Article 324
- (b) Article 325
- (c) Article 326
- (d) Article 327

Chhattisgarh P.C.S. (Pre) 2018

Ans. (c)

Article 326 - Elections to the house of the people and to the legislative assemblies of states to be based on adult suffrage.

37. Which Article of the Indian Constitution provides right to vote i.e. adult suffrage for electing representatives of Lok Saba and Vidhan Sabha?

- (a) Article 326
- (b) Article 325
- (c) Article 324
- (d) Article 323

U.P. R.O./A.R.O. (Mains) 2017

Ans. (a)

Article 326 of the Indian Constitution provides elections to the House of the People and to the Legislative Assemblies of States to be based on adult suffrage.

38. According to the Law enacted by Parliament in December 1989, the legal age for a citizen to become major is:

- (a) 23 years
- (b) 22 years
- (c) 20 years
- (d) 18 years

U.P.P.C.S. (Pre) 2000

Ans. (d)

According to the 61st Amendment Act, 1988 the minimum age to be eligible to vote was reduced from 21 to 18 years by amending Article 326 of the Constitution to provide to the unrepresented youth of the country an opportunity to give vent to their feelings and help them to become a part of political process. It became possible by amending the Representation of the People Act, 1951.

39. What is the eligibility age, after the changes made in March 2024, for senior citizens to vote by postal ballot ?

- (a) 85 years
- (b) 80 years
- (c) 82 years
- (d) 90 years

70th B.P.S.C. Pre-2024

Ans. (a)

On March 1, 2024, after consultation with the Election Commission, the Ministry of Law and Justice amended Rule 27A of the "Conduct of Elections Rules, 1961," to allow senior citizens to vote through postal ballot from home. The eligible age for this facility was raised from 80 years to 85 years.

For the first time, in the 2024 Lok Sabha general elections, senior citizens aged 85 years and above, at the national level, and individuals with 40% or more certified disabilities were provided the facility to cast their vote from home through postal ballot.

40. The Principles for election to the State Legislatures include:

1. It will be on the basis of adult suffrage.
2. There will be only one electoral roll for every territorial constituency.
3. Religion, Race, Sex, etc., will have no place in the formation of the electoral roll.
4. The political parties will be free to have their norms.

Select the correct answer from the given code:

Code :

- (a) 1, 3 and 4
- (b) 2, 3 and 4
- (c) 1, 2 and 3
- (d) All the four

U.P.C.S. (Mains) 2011

Ans. (d)

According to the Constitution 61st Amendment Act, 1988 all adults of 18 years age have the Right to Vote. There is no distinction on the basis religion, race, sex, etc. There will be only one electoral list for every territorial constituency, and the political parties can establish their own norms.

41. If 'One Nation One Election' is to be realized in India, which Article of the Indian Constitution will require an amendment?

- (a) Article 83
- (b) Article 172
- (c) Article 356
- (d) Article 246
- (e) None of the above/More than one of the above

67th B.P.S.C. (Pre) (Re- Exam), 2022

Ans. (e)

'One Nation, One Election' is to be realized in India, a constitutional amendment may be needed in Articles 83, 85, 172, 174 and 356. Thus correct option is (e).

42. Who among the following is not a member of a high level committee constituted on simultaneous elections?

- (a) Dr. Niten Chandra
- (b) Dr. Subhash C. Kashyap
- (c) Sri Tushar Mehta
- (d) Sri N.K. Singh

Chhattishgarh P.C.S. (Pre) 2024

Ans. (c)

The High-Level Committee on Simultaneous Elections, established on September 2, 2023, was chaired by former President Ram Nath Kovind. The committee comprised several notable members:

- Amit Shah, Union Minister of Home Affairs and Minister of Cooperation
 - Ghulam Nabi Azad, former Leader of Opposition in Rajya Sabha
 - N.K. Singh, former Chairman of the 15th Finance Commission
 - Dr. Subhash C. Kashyap, former Secretary General of Lok Sabha
 - Harish Salve, Senior Advocate
 - Sanjay Kothari, former Chief Vigilance Commissioner
- Additionally, Arjun Ram Meghwal, Minister of State (Independent Charge) for the Ministry of Law and Justice, served as a Special Invitee, and Dr. Niten Chandra was the Secretary of the committee. Notably, Adhir Ranjan Chowdhury, the parliamentary leader of the Indian National Congress in the Lok Sabha, was initially named as a member but declined to participate in the committee. Therefore, among the individuals listed, Adhir Ranjan Chowdhury was not a member of the High-Level Committee on Simultaneous Elections.

43. Which one of the following statements regarding Exit Poll is correct?

- (a) Exit Poll is a term used to denote a post-election survey of voters regarding the candidates in whose favour they had exercised their franchise
- (b) Exit Poll and Opinion Polls are one and the same
- (c) Exit Poll is a device through which results of voting can be most exactly predicted
- (d) Exit Poll is an administrative device made recently by the Chief Election Commissioner to prevent impersonation

I.A.S. (Pre) 1994

Ans. (a)

Exit Poll is a term used to denote a post-election survey of voters regarding the candidates in whose favour they had exercised their franchise. The Opinion Poll is conducted by different survey agencies before the elections to know public views regarding the elections.

44. What is the total number of electors in Lok Sabha elections of 2009 in Million ?(1 million = 10 Lakh).

- (a) 815
- (b) 613

(c) 714

(d) 903

U.P. Lower Sub. (Spl) (Pre) 2004

Ans. (c)

The total number of electors in the Lok Sabha election of 2009 was 714 million.

45. Consider the following statements :

1. In India, there is no law restricting the candidates from contesting in one Lok Sabha election from three constituencies.
2. In 1991 Lok Sabha Election, Shri Devi Lal contested from three Lok Sabha constituencies.
3. As per the existing rules, if a candidate contests in one Lok Sabha election from many constituencies, his/her party should bear the cost of by-elections to the constituencies vacated by him/her in the event of him/her winning in all the constituencies.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
(c) 1 and 3 (d) 2 and 3

I.A.S. (Pre) 2021

Ans. (b)

According to Section 33 of the Representation of People Act 1951: A person shall not be nominated as a candidate for election –

- (a) in the case of a general election to the House of the People, from more than two Parliamentary constituencies;
- (b) in the case of a general election to the Legislative Assembly of a State, from more than two Assembly constituencies in that State;

Hence, statement 1 is incorrect.

In the 1991 Lok Sabha Election, Shri Devi Lal contested from three Lok Sabha constituencies. In response to in 1996, the Representation of the People Act, 1951, was amended. Hence, whenever the leader have won more than one, the candidates have retained only one, forcing bypolls in the rest. Hence, statement 2 is correct.

There is no such provision in the rules like, "if a candidate contests in one Lok Sabha election from many constituencies, his/her party should bear the cost of bye - elections to the constituencies vacated by him/her in the event of him/her winning in all the constituencies." Hence statement 3 is incorrect.

46. Consider the following statements about the recent amendments to the elections law by the Representation of the People (Amendment) Act 1996.

1. Any conviction for the offence of insulting the Indian National Flag or the Constitution of India

shall entail disqualification for contesting elections to Parliament and State Legislatures for six years from the date of conviction

2. There is an increase in the security deposit which a candidate has to make to contest the election to the Lok Sabha
3. A candidate cannot now contest election from more than one Parliament Constituency
4. No election will now be countermanded on the death of a contesting candidate

Which of the above statements are correct

- (a) 2 and 3 (b) 1, 2 and 4
(c) 1 and 3 (d) 1, 2, 3 and 4

I.A.S. (Pre) 1999

Ans. (b)

The Representation of People (Amendment) Act, 1996 was based on the recommendations of the Dinesh Goswami Committee. Now, a candidate can not contest an election from more than two Parliamentary constituencies. No election will now be countermanded on the death of a contesting candidate rather a new candidate of the respective party will have to contest on his place. Statement 1, 2, and 4 are correct while statement 3 is not correct.

47. The Dinesh Goswami Committee recommended:

- (a) The constitution of state-level election commission
- (b) List system of election to the Lok Sabha
- (c) Government funding of parliamentary elections
- (d) A ban on the candidature of independent candidates for the parliamentary elections

I.A.S. (Pre) 1997

Ans. (c)

Dinesh Goswami was Law Minister in V.P. Singh Government in 1989. The Representation of People (Amendment) Act, 1996 was based on the recommendations of the Dinesh Goswami Committee. This Committee recommended the government funding of the Parliamentary elections.

48. The Dinesh Goswami Committee was concerned with:

- (a) De-nationalisation of banks
- (b) Electoral reforms
- (c) Steps to put down insurgency in the north - east
- (d) The problem of the Chakmas

I.A.S. (Pre) 1995

Ans. (b)

See the explanation of the above question.

49. Read the following statements in relation to reservation of seats in Lok Sabha and Legislative Assembly, and choose the correct option:

Statement I : Out of the 543 elected seats in the Lok Sabha, 84 are reserved for Scheduled Castes and 44 are reserved for Scheduled Tribes.

Statement II : Decision, on which constituency is to be reserved, is taken by the Delimitation Commission.

Statement III : The Delimitation Commission is appointed by the Lok Sabha Speaker.

- (a) Statement I, II and III all are true.
- (b) Statement I is true, but Statement II and III are false
- (c) Statement I and III are false, but Statement II is true.
- (d) Statement I, II and III all are false.

Chhattisgarh P.C.S. (Pre) 2020

Ans. (c)

Seats are reserved in the Lok Sabha for the members of the Scheduled Castes and Scheduled Tribes. As per the order issued by the Delimitation Commission in 2008, out of 543 elected seats in the Lok Sabha, 84 seats are reserved for Scheduled Castes, and 47 seats are reserved for Scheduled Tribes. Thus, Statement I is false. The Delimitation Commission is constituted by the Central Government under the Law made by the Parliament. The main purpose of the Commission is to rationalize the structure and composition of the electoral constituencies on the principle of "One Vote and One Value. The "decision on which constituency is to be reserved, is taken by the Delimitation Commission. Thus, Statement II is true, while statement III is false.

50. With reference to the Delimitation Commission, consider the following statements:

- 1. The orders of the Delimitation Commission cannot be challenged in a Court of Law.**
- 2. When the orders of the Delimitation Commission are laid before the Lok Sabha or State Legislative Assembly, no modifications can be done in the orders.**

Which of the statement(s) given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre) 2012

Ans. (c)

The Delimitation Commission is formed by the Government of India. The main task of the Commission is to redraw the boundaries of the various assemblies and Lok Sabha constituencies based on the latest census. It is a powerful institution. The orders of the Delimitation Commission cannot be challenged in a Court of Law. The orders of the Delimitation Commission are laid before the Lok Sabha or the State Legislative Assembly, but they cannot effect any modifications in the orders. So far, 5 Delimitation Commissions (1952, 1963, 1973 and 2002 and latest in march 2020) have been established in India.

51. How many Delimitation Commissions have been constituted by the Government of India till December 2023?

- (a) One
- (b) Two
- (c) Three
- (d) Four

I.A.S. (Pre) 2024

Ans. (d)

Delimitation means the process of fixing the number of seats and boundaries of territorial constituencies in each State/UT for the Lok Sabha and Legislative assemblies. It also includes determining the seats to be reserved for Scheduled Castes (SC) and Scheduled Tribes (ST) in these Houses. The 'delimitation process' in India is performed by the 'Delimitation Commission' that is set up under an Act of Parliament. In India, such Delimitation Commissions have been constituted 4 times- in 1952 under the Delimitation Commission Act, 1952, in 1963 under Delimitation Commission Act, 1962, in 1973 under Delimitation Act, 1972 and in 2002 under Delimitation Act, 2002. The delimitation of four north-eastern States by the Delimitation Commission of 2002 (Chairman-Justice Kuldeep Singh) was deferred due to security risks, by four separate presidential orders, all issued on 8 February 2008, for Assam, Arunachal Pradesh, Nagaland and Manipur. The orders regarding these States were rescinded on 28 February 2020. Subsequently, the Government of India has again constituted the Delimitation Commission under the Section 3 of the Delimitation Act, 2002 for these four States as well as the UT of Jammu and Kashmir on 6 March 2020, under the chairpersonship of Justice Ranjana Prakash Desai. In March 2021, the four north-eastern States were removed from the purview of the reconstituted Commission. Hence, technically 5 Delimitation Commissions were constituted (including 2020 Commission) till December 2023, but as per the Delimitation Acts, option (d) is the correct answer.

52. Given below are two statements, one labelled as Assertion (A) and the other as Reason (R) :

Assertion (A): The system of proportional representation may solve the problem of minority representation to some extent.

Reason (R) : The system of proportional representation enables due representation to all type of groups based on ethnicity, gender, interests, and ideologies.

Choose the correct answer from the code given below:

Code :

- (a) Both (A) and (R) are true, and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are true, but (R) is not a correct explanation of (A).
- (c) (A) is true, but (R) is false.
- (d) (A) is false, but (R) is true.

U.P. Lower Sub. (Mains) 2013

Ans. (a)

The system of proportional representation solves the problem of minority representation by providing due representation to all sections of society. The system of proportional representation enables due representation to all type of groups based on ethnicity, gender, interests and ideologies. Thus, assertion (A) and Reason (R) both are correct, and reason (R) is the correct explanation of assertion (A).

53. The system of proportional representation as an electoral mechanism ensures

- (a) Majority rule
- (b) Stability in Government
- (c) Common political thinking
- (d) Representation of minorities

U.P. Lower Sub. (Pre) 2013

U.P.P.C.S. (Pre) 2013

Ans. (d)

See the explanation of the above question.

54. Proportional representation is not necessary for a country where:

- (a) There are no reserved constituencies
- (b) a two-party system has developed
- (c) the first-past-post system prevails
- (d) there is a fusion of Presidential and Parliamentary forms of government

I.A.S. (Pre) 1997

Ans. (b)

The objective of a proportional representation system is to provide representation to each group in proper proportion. It becomes insignificant in a country where a two-party system has developed.

55. In the question given below, a statement is followed by two courses of action numbered (I) and (II). Choose the correct option from the following :

Statement : There has been less voting in this Lok Sabha election as compared to previous Lok Sabha election.

Course of action :

(I) The election commission should announce re-election for Lok Sabha.

(II) Election commission should cancel the voting rights of the people who did not vote in this Lok Sabha election.

- (a) Only (I) follows.
- (b) Only (II) follows.
- (c) Neither (I) nor (II) follow.
- (d) Both (I) and (II) follow.
- (e) Question not attempted

Raj. P.C.S. (Pre) 2024

Ans. (c)

Less voting in an election as compared to the previous election does not create the cause of course of action I and II. The elections are held with proper schedule and planning, awareness campaigns, advertisements etc. are used as tools to increase voter turnout, therefore no way a lesser voting binds the election commission to announce re-election. The voting rights in India are statutory, there is no legal duty imposed on citizens to vote, therefore the citizens, who do not vote can not be punished by abolishing their voting rights. Hence, both course of Actions do not follow.

56. What is the version of the machine VVPAT used for voting in India?

- (a) M1
- (b) Z1
- (c) M3
- (d) Z3
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (c)

M3 version of the VVPAT machines is used for voting in India. M3 EVMs are the third-generation EVMs. It can keep data of 384 candidates M3 EVMs also has added features like Tamper Detection and Self Diagnostics.

57. The Election Commission was converted into a 'Three members Commission' in the following year:

- (a) 1987
- (b) 1988
- (c) 1989
- (d) 1990

U.P.P.C.S. (Mains) 2006

Ans. (c)